

## 22STCV02241 22STCV02241

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-12

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Case Number: 22STCV02241 Hearing Date: August 12, 2026 Dept: C

DANIEL GONZALES v.

PIH HEALTH HOSPITAL - WHITTIER, et al.

CASE NO.: 22STCV02241

HEARING: 8/12/26 @

9:30 AM

#8

### TENTATIVE ORDER

Plaintiff Wanda M. Gonzales's motion to strike or tax costs

is GRANTED in part. The Court reduces the award of costs by \$30.00. The Court's ruling is STAYED pending the outcome of the appeal.

Moving party(s) to give notice.

### Background

On January 19, 2022, Plaintiff Daniel Gonzales filed a complaint against Defendants PIH Health Hospital – Whittier and Does 1 through 50. On September 25, 2023, Plaintiff Wanda M. Gonzales, individually and as Representative of the Estate of Daniel Gonzales ("Plaintiff"), filed the operative Third Amended Complaint ("TAC") against Defendants PIH Hospital – Whittier, Barlow Respiratory Hospital, and Does 1 through 50 alleging (1) professional negligence, (2) violation of Elder and Dependent Adult Civil Protection Act, and (3) wrongful death causes of action.

On April 2, 2026, the Court granted Defendant PIH Health Hospital – Whittier's ("Defendant") motion for summary judgment. On April 8, 2026, the Court entered judgment in favor of Defendant and on April 29, 2026, Defendant filed and served the notice of entry of judgment.

On May 1, 2026, Defendant filed a memorandum of costs.

On May 15, 2026, Plaintiff filed the instant motion to strike or tax costs.

On June 20, 2026, Plaintiff filed a Notice of Appeal from the judgment entered in favor of Defendant following the Court's order granting Defendant's motion for summary judgment.

On July 30, 2026, Defendant filed its opposition.

No reply was filed.

#### Legal Standard

A prevailing party is entitled to recover costs in any action or proceeding unless a statute expressly states otherwise. (Code Civ. Proc., § 1032.)

Code of Civil Procedure section 1033.5, subdivision (c) provides:

(1) Costs are allowable if incurred, whether or not paid. (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section . . . may be allowed . . . in the court's discretion.

(Code Civ. Proc., § 1033.5, subd. (c).)

A party may move to strike or to tax costs under California Rules of Court rule 3.1700 subdivision (b). "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).)

If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29.)

#### Analysis

Plaintiff moves for an order striking or taxing costs claimed by Defendant in its Memorandum of Costs served on May 1, 2026. Plaintiff seeks to tax item 5 and 8 and taxing or reducing portions of item 4.

As previously mentioned, on June 30, 2026, Plaintiff filed a notice stating that he appeals the judgment entered in favor of Defendant following the Court's order granting Defendant's motion for summary judgment.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).)

Because the issues presented in the instant motion to tax costs are simple and straightforward, the Court will address the merits of the motion and STAY its ruling pending the outcome of the appeal.

#### Item 4 (Deposition Costs)

Plaintiff argues that the Court should tax or reduce the challenged deposition cost for the deposition of Charlene Magdalik unless Defendant provides adequate support. Defendant provides the receipts for the deposition showing it incurred \$4,903.60 in costs for the deposition including \$2,908.10 for the deposition and \$1,995.50 for the video services of the deposition. (Declaration of Elyte D. Salna ("Salna Decl."), Exhibit E.) The Court finds that the transcription and video recording of the deposition were needed and reasonably necessary for Defendant to prepare its case because Charlene Magdalik was named as a witness for Plaintiff. Thus, the Court denies Plaintiff's request to tax or reduce item 4.

#### Item 5 (Service of Process)

Plaintiff argues that Defendant has not provided proof of the service of process regarding the deposition subpoena of Ms. Magdalik. Defendant provides the receipts for the service of process of the deposition subpoena on Ms. Magdalik. (Salna Decl., Exh. B.) Thus, the Court denies Plaintiff's request to tax item 5.

#### Item 8 (Witness Fees)

Plaintiff argues that the memorandum of costs provides no number of days, no mileage, no rate, no statutory calculation, and no explanation of whether these are ordinary witness fees, custodian fees, business record subpoena fees, copying charges, or something else. Defendant provides the invoices evidencing \$45.00 attributed to Whittier Hospital and \$45.00 attributed to Greater El Monte Community Hospital. (Salna Decl., Exh. F.) However, Defendant fails to provide evidence regarding Sunset Manor and Rite Aid. Thus, the Court grants the motion regarding item 8 and reduces the award of costs by \$30.00.

#### Conclusion

The Court grants Wanda M. Gonzales's motion to strike or tax costs in part. The Court reduces the cost award by \$30.00.